



CHAPTER iv

An Act to Confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Zetland County Council (Symbister Harbour).

[2nd March 1961.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Zetland County Council Short title.
(Symbister Harbour) Order Confirmation Act 1961.

SCHEDULE

ZETLAND COUNTY COUNCIL (SYMBISTER HARBOUR)

Provisional Order to authorise the County Council of the county of Zetland to construct and maintain works and form a harbour at Symbister island of Whalsay in the parish of Nesting Lunnasting Whalsay and Skerries and county of Zetland and to acquire lands to define harbour limits to authorise the levying and collection of rates and charges to confer powers to borrow money and for other purposes.

Whereas the County Council are the local authority for the county of Zetland (hereinafter referred to as "the County Council" and "the county" respectively) and are entrusted with the management administrative and financial business of the county:

And whereas the fishing industry carried on at Symbister island of Whalsay situated in the county is one of the basic industries on the east coast of the county and is the traditional occupation of the majority of the male inhabitants of the island of Whalsay:

And whereas the island of Whalsay is situated close to fishing grounds for both herring and white fish and the construction of the proposed works would be of great advantage to the local inhabitants and the facilities thus provided would meet an essential requirement for the landing of the catches of fish and the safe anchorage of fishing vessels:

And whereas estimates have been prepared of the cost of the works authorised by this Order and such estimates are as follows:—

Construction of thirty-foot access road for a length of one hundred and twenty feet or thereabouts	...	£1,000
Construction of a quay as a solid structure for a length of four hundred and ten feet or thereabouts	...	£41,000
Construction of breakwater as a solid structure for a length of four hundred and ten feet or thereabouts	...	£86,000
Construction of pier as an open work structure for a length of two hundred feet or thereabouts	...	£32,000

And whereas plans and sections showing the lines situations and levels of the works authorised by this Order have been deposited with the sheriff clerk of the county of Zetland:

And whereas application has been made to the Secretary of State who has agreed to make a grant towards the expenditure incurred in respect of the said pier and works connected therewith and the County Council have agreed to meet the remainder of such cost:

And whereas it is expedient that the County Council should be authorised to construct the works hereinafter described in this Order:

And whereas it is expedient to constitute the County Council the harbour authority at Symbister and to confer on them the powers hereinafter contained in the Order:

And whereas it is expedient that limits for the harbour undertaking should be defined:

And whereas it is expedient that the County Council should be authorised to borrow money for the purposes of this Order as provided in this Order and that the other financial provisions contained in this Order should be enacted:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I PRELIMINARY

1. This Order may be cited as the Zetland County Council (Symbister Short title. Harbour) Order 1961.

2. This Order shall commence and have effect on the date of the passing of the Act confirming the same.

Commence-
ment of
Order.

3. In this Order unless there be something in the subject or context repugnant to such construction the following words and expressions shall have the meanings hereinafter respectively assigned to them (that is to say):—

Interpretation.

“ Act of 1847 ” means the Harbours Docks and Piers Clauses Act 1847;

“ Act of 1937 ” means the Harbours Piers and Ferries (Scotland) Act 1937;

“ Act of 1947 ” means the Local Government (Scotland) Act 1947;

“ county ” means the county of Zetland;

“ County Council ” means the County Council of the county;

“ the existing pier ” means the existing pier shown upon the plans and sections deposited with reference to this Order;

“ harbour ” means the harbour authorised by this Order and the area defined in section 16 (Harbour limits) of this Order as “ the harbour limits ”;

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PART I
—cont.

- “ the harbour undertaking ” means the undertaking of the County Council in connection with the harbour and works authorised by this Order and includes the lands buildings plant property and conveniences connected therewith or any part thereof as the case may be;
- “ high-water mark ” means high-water mark of ordinary spring tides;
- “ Lands Clauses Acts ” means the Lands Clauses Acts and any Acts modifying or extending the same;
- “ the Minister ” means the Minister of Transport;
- “ seaplane ” includes a flying boat and any other aircraft designed to manoeuvre on the water;
- “ the sheriff ” means the sheriff of Caithness Sutherland Orkney and Zetland and includes his substitute at Lerwick;
- “ vessel ” includes a seaplane on the surface of the water;
- “ the works ” means the works authorised by this Order or as the case may require any part thereof.

PART II

UNDERTAKERS

Undertakers. 4. The County Council shall be the undertakers for carrying this Order into execution.

Incorporation of Acts. 5. The following enactments so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Order are hereby incorporated with and form part of this Order:—

- (i) the Lands Clauses Acts (with the exception of sections 120 to 126 of the Lands Clauses Consolidation (Scotland) Act 1845 relating to the sale of superfluous lands) and for the purposes of the incorporation of the said Acts the expression “ the special Act ” in those Acts shall mean this Order;
- (ii) Part III of the Act of 1937 and for the purposes of such incorporation the harbour shall be deemed to be a marine work.

Application of Harbours Docks and Piers Clauses Act 1847. 6.—(1) Notwithstanding anything contained in section 10 of the Act of 1937 section 6 of the Act of 1847 shall apply and sections 22 to 26 31 86 to 88 90 94 to 98 101 and 103 of the Act of 1847 shall not apply to the harbour.

(2) In the application to this Order of the Act of 1847 the expression “ the special Act ” shall mean this Order and the word “ vessel ” shall include a seaplane on the surface of the water:

Provided that nothing in the Act of 1847 or this Order shall in any circumstances require or authorise the harbour master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(3) Section 28 of the Act of 1847 (which section exempts certain vessels from the provisions of the Act) in its application to this Order shall have effect as if in the said section for the words from “ or any packet boat ” to “ any such packet boat or packet ” there were substituted the words “ or any vessel employed by or under the authority of the Postmaster-General for the conveyance under contract of postal packets as defined by the Post Office Act 1953 not being a vessel also conveying passengers or goods for hire or reward or any mail bag as so defined conveyed by any such vessel ”.

PART II
—cont.

PART III

LANDS

7.—(1) Subject to the provisions of this Order the County Council may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of this Order.

Power to
acquire lands.

(2) The powers of the County Council for the compulsory purchase of land under this section shall cease after the expiration of three years from the commencement of this Order.

8.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the County Council after giving ten days' notice to the owner lessee and occupier of the land in question may apply to the sheriff for the correction thereof.

Correction of
errors in
deposited plans
and book of
reference.

(2) If on any such application it appears to the sheriff that the misstatement or wrong description arose from mistake he shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office House of Commons and with the sheriff clerk of the county the clerk of the county and clerk to the Whalsay District Council and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the County Council to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

9.—(1) All private rights of way over any land that may be acquired compulsorily under this Order shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

Extinction or
private rights
of way.

(2) Any person who suffers loss by the extinction of any right under this section shall be entitled to be paid by the County Council compensation to be determined in case of dispute under and in accordance with the provisions of the Lands Clauses Acts.

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PART III

—cont.

Acquisition of
part only of
certain lands.

10. Whereas in the construction of the works authorised by this Order or otherwise in exercise of the powers of this Order it may happen that portions only of the lands and properties shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the said lands and properties whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the official arbiter or other authority to be appointed under the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the County Council the portions only of the said properties so required without the County Council being obliged or compellable to purchase the whole or any greater portion thereof the County Council paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested in severance or otherwise.

Power to
enter for
survey and
valuation.

11. The County Council and their surveyors and workmen and any person duly authorised in writing under the hand of the county clerk may from time to time at all reasonable times in the day upon giving in writing for the first time seven days' notice and afterwards from time to time twenty-four hours' previous notice enter upon and into the lands houses and buildings authorised by this Order to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being subject or liable to any fine penalty or punishment on account of entering or remaining on any part of the said lands houses and buildings.

Further powers
of entry.

12. At any time after notice to treat has been served for any land which the County Council are authorised by this Order to purchase compulsorily the County Council may after giving to the owner and occupier of the land not less than fourteen days' notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with the provisions of sections 83 to 89 of the Lands Clauses Consolidation (Scotland) Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

Power to
acquire lands
by agreement.

13. The County Council may purchase by agreement and use all or such parts of the lands shown on the deposited plans as they may think requisite for the purposes of the works and may (in addition to the lands so authorised) purchase by agreement and hold for the purposes of this Order any lands not exceeding in the whole five acres but nothing in this section shall exempt the County Council from any proceedings for nuisance caused or permitted by them on land acquired by them under the powers conferred by this section.

Power to grant
servitudes etc.

14.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the County Council any servitude right or

privilege required for the purposes of this Order in over or affecting any such lands (not being a servitude or right of water in which some person other than the grantor has an interest).

PART III
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(2) The provisions of the said Acts with respect to lands and feu duties or ground annuals so far as such provisions are applicable shall extend and apply to any such grant and to any such servitude right or privilege as aforesaid.

15.—(1) The County Council may—

Power to retain
and sell lands.

- (a) retain and hold and use for such time as they think fit any land or interest in land vested in them as part of the harbour undertaking;
- (b) sell feu lease excamb or otherwise dispose of any such land or interest no longer required for the purpose of the harbour undertaking in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a gross sum or of an annual feu duty or rent or of payment in any other form);
- (c) sell excamb or dispose of any feu duties created or rents reserved on the sale feu lease excambion or other disposition of any such land or interest;
- (d) make do and execute any deed act or thing proper for effectuating any such sale feu lease excambion or other disposition;
- (e) on any such excambion pay or receive money for equality of exchange:

Provided that the County Council shall not without the consent of the Secretary of State sell feu lease excamb or otherwise dispose of any such land or interest therein except at the best price or upon the best terms which can be obtained for such land or interest but a purchaser feuar or lessee shall not be concerned to inquire whether the consent of the Secretary of State is necessary or has been obtained.

(2) Nothing in this section shall release the County Council or any persons purchasing or acquiring any land or interest in land from them under this section from any feu duties ground annuals rents obligations restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed feued or leased to or otherwise acquired by the County Council or any persons from or through whom the County Council have derived title to such land or interest.

PART IV

LIMITS

16.—(1) The limits within which the County Council shall have authority and within which the powers of the harbour master may be exercised with respect to the harbour undertaking shall comprise the lands forming part of the harbour undertaking and the following area below high-water mark that is to say an area lying within a limit

PART IV
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commencing at a point on the foreshore at high-water mark on the west shore of Symbister Bay one hundred and forty feet from the root of the proposed breakwater (Work No. 2) on true bearing two hundred and eighty degrees thence proceeding in a straight line across Symbister Bay or the sea and foreshore of the same on true bearing fifty-four degrees for a distance of one thousand three hundred and thirty feet or thereby to a point on the foreshore at high-water mark on the east shore of Symbister Bay thence proceeding in a southerly direction along high-water mark on the east shore of Symbister Bay passing the tidal basin on the east side of the bay and thence generally south-westward again along high-water mark on the south shore of Symbister Bay to the root of the south pier of the existing small boat harbour thence following the line of the piers and quays forming the existing small boat harbour and the proposed new harbour works to the root of the proposed breakwater and thence along high-water mark on the west shore of Symbister Bay to the point of commencement which limits are in this Order termed “the harbour limits”.

(2) The limits within which the powers of the County Council to levy rates with respect to the harbour undertaking may be exercised shall comprise the harbour limits and such limits shall be construed as being included in the parish of Nesting Lunnasting Whalsay and Skerries and wholly within the county for all purposes.

(3) A map or plan showing the harbour limits of which four copies have been signed by Colin Neil Fraser Q.C. Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within one month after the commencement of this Order be deposited as follows that is to say two copies at the office of the Minister one copy with the sheriff clerk of the county at his office and one copy at the office of the county clerk of the county.

(4) In case of any discrepancy between the limits delineated in the said map or plan and the limits described in subsection (1) of this section the said map or plan shall be deemed to be correct and shall prevail.

PART V

WORKS AND POWERS

Power to
construct works.

17. Subject to the provisions of this Order and also subject to such alterations (if any) in the plans and sections deposited with reference to this Order as the Minister may require before completion of the works the County Council may on the lands belonging to them or acquired under this Order and in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections make and maintain the works.

Description of
works.

18. The works authorised by this Order will be situated in the parish of Nesting Lunnasting Whalsay and Skerries and county of Zetland and on the foreshore and bed of the sea adjacent thereto and are—

Work No. 1 The construction of an access roadway thirty feet wide commencing at a point one hundred and twenty feet or thereabouts north-west of the root of the existing pier

and extending in a northerly direction for a distance of one hundred and twenty feet or thereabouts from the point of commencement;

Work No. 2 A reclamation of the foreshore the construction of a quay and the infilling levelling and surfacing of the deck thereof as a solid structure commencing at a point on the foreshore approximately two hundred feet north-west of the root of the existing pier and extending seawards in a north-easterly direction for a distance of one hundred and sixty feet or thereabouts thence in a north-westerly direction for a distance of two hundred and fifty feet or thereabouts thence in a south-westerly direction for a distance of two hundred and ten feet or thereabouts and thence in a south-easterly direction for a distance of two hundred and forty feet or thereabouts and comprising an area of five thousand seven hundred and thirty-one square yards;

Work No. 3 The construction of a breakwater as a solid structure commencing at a point on the foreshore four hundred and ninety feet or thereabouts north-west of the root of the existing pier and extending in a north-easterly direction for a distance of four hundred and ten feet or thereabouts from the point of commencement;

Work No. 4 The construction of a pier as an open work structure with a wave screen along the seaward face commencing at the termination of Work No. 3 and extending in an easterly direction for a distance of two hundred feet or thereabouts from the point of commencement.

19. Subject to the provisions of this Order in constructing the works the County Council may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation marked thereon and may deviate vertically from the levels of the works shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards:

Power to deviate.

Provided that deviation either lateral or vertical below high-water mark shall not be made without the consent in writing of the Minister.

20. Subject to the provisions of this Order the County Council may from time to time erect construct and maintain whether temporarily or permanently all such necessary works and conveniences as may be requisite or expedient for the purposes of or in connection with the construction maintenance and use of the works.

Power as to subsidiary works.

21.—(1) Subject to the provisions of this Order the County Council may within the harbour limits rebuild maintain repair renew widen alter improve restore reconstruct and extend the harbour undertaking and may from time to time erect construct and maintain whether temporarily or permanently all necessary ancillary works apparatus and conveniences and may also from time to time lay down and maintain rails tramways and turntables.

Power to maintain and improve harbour undertaking.

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(2) A line of rails or tramway constructed under the powers of this Order shall not be used for the public conveyance of passengers unless it has been certified by the Minister to be fit for that purpose.

(3) Any electric light and power or other apparatus constructed and maintained under this Order shall be so constructed used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Penalty for
obstructing
works.

22. Any person who wilfully obstructs any person acting under the authority of the County Council in setting out the lines of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of such setting out shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding ten pounds and shall in addition be liable to repay to the County Council any expenses incurred by them in making good such damage.

Powers to
cease in
certain events.

23.—(1) If the works are not substantially commenced within two years from the commencement of this Order or such extended time as the Secretary of State may in the circumstances by order direct the said powers shall cease.

(2) If the execution of the works after having been substantially commenced is virtually suspended for twelve consecutive months the said powers shall cease except as to so much of the works as is then completed unless the Secretary of State by order directs that the said powers continue and remain in force but subject to the foregoing provision as to completion the said powers shall cease in any event within five years from the commencement of this Order.

(3) A certificate of the Secretary of State to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this section be conclusive evidence of the facts stated in such certificate.

Works below
high-water
mark to be
subject to
approval of
Minister.

24.—(1) The County Council shall not under the powers of this Order construct renew extend or alter any works on in under or over tidal waters or tidal lands below high-water mark except in accordance with plans and sections approved by the Minister and subject to such restrictions and regulations as the Minister may prescribe before such work is begun.

(2) If any such work is commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the County Council and the amount of such cost shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

Survey of
certain works
by Minister.

25. If at any time the Minister deems it expedient to order a survey and examination of any work constructed by the County Council under the powers of this Order on in under or over tidal waters or tidal lands below high-water mark or of the site upon which it is

proposed to construct any such work the County Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

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26.—(1) Where any work constructed by the County Council under the powers of this Order wholly or partially on in under or over tidal waters or tidal lands below high-water mark is abandoned or suffered to fall into decay the Minister may by notice in writing either require the County Council at their own expense to repair and restore such part of such work as is situated below high-water mark or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

Abatement of work abandoned or decayed.

(2) Where any part of such work which has been abandoned or suffered to fall into decay is situated above high-water mark and is in such condition as to interfere or cause reasonable apprehension that the same may interfere with the right of navigation or the exercise of other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If the County Council fail to comply with any notice under this section within thirty days from the date when the notice is served upon them the Minister may execute the works specified in the notice at the expense of the County Council and the amount of such expense shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

27.—(1) The County Council shall at or near any part of the authorised works below high-water mark during the whole time of the construction renewal extension or alteration thereof exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister shall from time to time require or approve.

Lights on works during construction.

(2) If the County Council fail to comply in any respect with the provisions of this section they shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds and in the case of a continuing offence to an additional fine not exceeding two pounds for every day on which after conviction thereof they so fail.

28.—(1) After completion of the works authorised by this Order the County Council shall at the outer extremity of the authorised works below high-water mark exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Permanent lights on works.

(2) If the County Council fail to comply in any respect with the provisions of this section they shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds and in the case of a continuing offence to an additional fine not exceeding two pounds for every day on which after conviction thereof they so fail.

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Provision
against danger
to navigation.

29.—(1) In case of injury to or destruction or decay of the works authorised by this Order or any part thereof so far as the same shall be constructed on in under or over any tidal waters or tidal lands below high-water mark the County Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for directions as to the means to be taken.

(2) If the County Council fail to comply in any respect with the provisions of this section they shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding ten pounds and in the case of a continuing offence to an additional fine not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Power to
purchase
dredgers etc.

30.—(1) The County Council may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same.

(2) All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the undertaking and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

(3) Any electrical machinery apparatus or works provided purchased taken on lease hired or used under this section shall be so constructed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

PART VI

RATES

Rates for
services and
accommodation
not otherwise
provided for.

31. In addition to the powers conferred upon the County Council by section 12 of the Act of 1937 the County Council may demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing-machines mooring-posts cranes buoys works and conveniences belonging to or provided by the County Council or in respect of any services rendered by them in connection with the harbour undertaking.

Master of
fishing vessel to
report take of
fish.

32.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the harbour limits forthwith furnish to such officer as the County Council may appoint as the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof.

(2) If the master or owner of a vessel fails to comply with this section he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds and in the case of a continuing offence to an additional fine not exceeding two pounds for every day on which after conviction thereof the offence continues.

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—cont.

33. The harbour master may prevent the removal or sailing from Harbour within the harbour limits of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the officer of the County Council appointed for the collection of rates (and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order). master may prevent sailing of vessels.

34. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the harbour. Exemption of lifeboat crew.

35. Without prejudice to the generality of section 28 of the Act of 1847 officers of the Ministry of Transport British Sea-Fishery officers and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the harbour without payment. Officers exempt from rates.

PART VII FINANCE

36. The power to borrow money conferred on county and town councils by section 21 of the Act of 1937 shall extend and apply with respect to the works and with regard to the exercise by the County Council of the powers conferred on them by this Order in the same way as if the works were works authorised by a provisional order made under section 4 of the Act of 1937 and as if the exercise of the powers conferred on the County Council by this Order were purposes of the Act of 1937. Power to borrow money for purposes of works etc.

37. The County Council in addition to any other powers of borrowing which they now have may for— Further borrowing powers.

- (a) the general purposes of the harbour undertaking;
- (b) the payment of the costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto;

borrow such sums of money as may be necessary for those purposes respectively:

Provided that money so borrowed for purpose (a) shall be repaid within thirty years from the date or dates of borrowing and that money so borrowed for purpose (b) shall be repaid within five years from the commencement of this Order.

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PART VII
—cont.
Application of
money
borrowed.
Saving for
control on
borrowing.

38. The money borrowed under this Order shall be applied only for the purposes of this Order for which capital money may properly be applied and not otherwise.

39. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946 or of section 259 of the Act of 1947 as amended by subsection (1) of section 4 of the Local Government (Scotland) Act 1951.

PART VIII
MISCELLANEOUS

Procedure for
making
byelaws.

40. After the commencement of this Order the provisions of subsections (4) (5) (7) (8) (9) (11) and (12) of section 301 and section 303 of the Act of 1947 shall apply to all byelaws made by the County Council in respect of the harbour undertaking under section 83 of the Act of 1847 or in the exercise of any powers in that behalf conferred on the County Council by any other enactment except such as relate solely to the County Council or their officers or servants.

Power to sell
undertaking.

41.—(1) At any time after the works have been completed the County Council may with the previous consent in writing and upon such terms conditions and restrictions as may be approved by the Secretary of State sell the undertaking and the purchaser to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the County Council by this Order or which the County Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the County Council are subject and shall perform all the duties of the County Council under this Order.

(2) The County Council shall within one month after the date of any conveyance made under this section deposit a certified copy thereof with the Secretary of State.

Meters and
weighers.

42. The County Council shall have the appointment of meters and weighers within the harbour limits.

Recovery of
penalties.

43. Proceedings for any offence against this Order or against any byelaws made under section 83 of the Act of 1847 shall be brought in the sheriff court.

Prohibition of
net fishing
within harbour
limits.

44.—(1) A person shall not fish from a vessel or boat or otherwise by means of nets within the harbour limits.

(2) A person who contravenes the provisions of this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding one hundred pounds and in default in payment to imprisonment for a period not exceeding three months.

(3) Without prejudice to the provisions of subsection (1) of this section the following persons shall be guilty of an offence and be liable on summary conviction to the aforesaid penalty:—

- (a) the owner of any fishing or other vessel or boat who uses or permits the use of such vessel or boat for the purpose of fishing by means of nets within the harbour limits;
- (b) the master or person in charge of a fishing or other vessel from which fishing is carried out in manner aforesaid within the harbour limits; and
- (c) all or any of the persons on board a boat which does not have a person in charge and from which fishing is carried out in manner aforesaid within the harbour limits.

45. The harbour master or any servant of the County Council acting on the instructions of the harbour master may after giving warning if reasonably practicable to the owner or person in charge thereof cut adrift or sink any fishing nets or appurtenances within the harbour limits which may constitute a danger to navigation.

Power to cut
or sink nets.

46. The County Council in order to control traffic on the harbour property and the works on occasions when there may be an assembly of people may erect such barricades or crush barriers as the County Council deem necessary to prevent obstruction or may barricade off any area which the County Council consider should be kept clear.

Power to erect
barricades.

47. The County Council may provide facilities on the harbour property and the works for the parking of motor vehicles and for this purpose may erect barricades or fencing on the harbour property and the works with relative offices waiting rooms and other conveniences.

Parking places.

48. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act.

Saving for
town and
country
planning.

49. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the County Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of such Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

50. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the County Council.

Costs of Order.

Ch. iv *Zetland County Council (Symbister 9 & 10 ELIZ. 2
Harbour) Order Confirmation Act, 1961*

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 19.
Harbours Docks and Piers Clauses Act 1847	10 & 11 Vict. c. 27.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Harbours Piers and Ferries (Scotland) Act 1937	1 Edw. 8 & 1 Geo. 6 c. 28.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Local Government (Scotland) Act 1947	10 & 11 Geo. 6 c. 43.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6 c. 53.
Local Government (Scotland) Act 1951	14 & 15 Geo. 6 c. 15.
Post Office Act 1953	1 & 2 Eliz. 2 c. 36.

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